

22. The result of the late Act is that it is now unnecessary and inadvisable to insert a power of sale in a family settlement of real estate; but the powers arising under the Act which are sufficient for any ordinary case should be relied on (*c*).

23. **Sale with consent.**—Where trustees were empowered to sell and enfranchise with the consent of the person for the time being entitled as beneficial tenant for life, and the will contained a direction that no repurchase or reinvestment should be made while there should be any person entitled as beneficial tenant for life or tenant in tail in possession and of the age of twenty-one years, without the previous consent of such person, it was held that the trustees could during the infancy of a tenant in tail in possession make a good title under the power (*d*).]

24. **Sale at request of a party.**—Trustees for sale at the request and by the direction of another party, to be testified in writing, &c., cannot obtain a decree for specific performance without first proving that the contract was entered into at such request and by such direction, and that such request and direction have, either before or since the contract, been testified by the requisite writing (*e*). Nor if trustees have a power of selling or leasing at the written request of another, will the Court enforce a contract without such request, though it is alleged that there was part performance [*430] by the trustees and by the person * whose request was necessary, and that it is therefore a case where a mere *parol* contract is sufficient (*a*).

25. **Trustees for sale of a limited interest in an estate or of an aliquot part of an estate.**—If an estate be vested in trustees upon trust for A. for life, and *on the decease of A. to*

chap. xxiii. s. 2. See also the observations in *Wheelwright v. Walker*, 23 Ch. D. 759, which seem not to give full effect to sect. 53 of the Settled Land Act, 1882.]

[(*c*) As to the powers of a tenant for life under the Act, and the effect of the Act generally, see *post*, chap. xxii.]

[(*d*) *Re Sir T. Neave and Chap-*

man and Wren, 49 L. J. N. S. Ch. 642.]

(*e*) *Adams v. Broke*, 1 Y. & C. C. C. 627; *Sykes v. Sheard*, 33 Beav. 114; see the decree at the foot of the case; and see *Blackwood v. Borrowes*, 2 Conn. & Laws. 459.

(*a*) *Phillips v. Edwards*, 33 Beav. 440.